***Jordan Morrison v. Ronald Morrison, et al.,* 25CV-0187**

Hearing: Motion for Protective Order

Date: June 25, 2026

TENTATIVE RULING

Jordan Morrison (Plaintiff) filed this action in March 2025. He filed a first amended complaint in November 2025 (FAC). Plaintiff began employment with Pureinfluencer, LLC (the LLC) in January 2018, and was promoted to Vice President of Business Development in September 2019. Plaintiff provides evidence he received a 10% ownership stake in the LLC, which resulted in a new Operating Agreement for the entity. Plaintiff also alleges he received dividends and distributions due to his status as a member of the LLC.

The FAC sets forth twelve causes of action based on three distinct relationships. First, the FAC alleges wrongful termination and retaliation against the LLC arising out of Plaintiff's employment. Second, the FAC alleges breach of the operating agreement, violations of the Corporations Code, declaratory relief, breach of fiduciary duty, misrepresentation, and concealment, against the LLC and Ronald Morrison and Rana Morrison (the other members of the LLC who hold a majority interest). The latter three claims are against the Morrisons only. Related to those claims is a cause of action for civil conspiracy asserted against Anthony Monteiro and Auto Acquire, Inc. alleging those defendants assisted Ronald Morrison in misappropriating the LLC's assets to develop Auto Acquire, Inc. Third, the FAC alleges professional negligence and breach of fiduciary duties owed to a client. These two causes of action are asserted against attorneys Ziyad Naccasha (Naccasha) and Emilie Elliott (Elliott) and the law firm Carmel and Naccasha (C&N). The twelfth and final cause of action alleges a violation of Penal Code section 496 (receipt of stolen property) against all defendants, including Chelsea Cheney and Hanna Cheney.

Before the Court is Elliott, Naccasha, and C&N's (collectively Moving Party) motion for protective order. The motion is brought pursuant to Code of Civil Procedure section 2031.060 which provides that a party served with a request for production of documents (RFP) "may promptly move for a protective order." (§ 2031.060, subd. (a).) "The court, for good cause shown, may make any order that justice requires to protect any party or other person from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense." (§ 2031.060, subd. (b).)

The protective order is also sought regarding Form Interrogatory 15.1 pursuant to section 2030.090, which has similar provisions applicable to interrogatories.

A protective order may include a variety of directions regarding challenged discovery requests. (§ 2031.060, subds. (b)(1)-(6).) Moving party seeks an order "precluding Plaintiff Jordan Morrison ("Plaintiff") from seeking discovery which violates the parties' attorney-client and attorney work product privileges." (Amended Motion, p. 2, lns. 2-3.) An objection is sufficient to preclude a party from obtaining information and documents protected by attorney-client and work product privileges.

While Plaintiff argues C&N waived the attorney-client privilege by serving untimely responses, the holder of the privilege is the client and the privilege cannot be waived by legal counsel without the client's permission. (Evid. Code §§ 953, 954.) Moving Party submits the Declaration of Ronald Morrison as evidence the LLC has not waived the privilege. While the declaration is defective in that the place of signing is blank, it substantially complies with section 2015.5. (*Kulshrestha v. First Union Com. Corp*. (2004) 33 Cal. 4th 601, 611.) The LLC has not waived the attorney-client privilege.

Further, the RFPs at issue seek both protected and unprotected documents. (See, e.g., C&N RFPs 3[1], 4, 5, 22.) Moving Party argues that the LLC's financial documents are somehow protected by the privilege. (Amended Motion, p. 6, lns. 2-8.) On the contrary, financial documents provided by a corporate client to its attorney are not protected by the attorney-client privilege and are routinely compelled subject to a protective order limiting use to the litigation, shielding the documents from public disclosure, and requiring they be returned or destroyed after litigation. A client cannot protect unprivileged documents from discovery by transmitting them to an attorney. (*Costco Wholesale Corp. v. Superior Court* (2009) 47 Cal.4th 725, 735.)

Some of the RFPs request communications between Naccasha or C&N and the LLC or Ronald Morrison which are likely privileged, but others request communications related to a topic or issue and are not necessarily limited to privileged communications. (See, e.g. C&N RFP 27, 28; Naccasha RFPs 2, 3, 4, 8, 9, 10, 11, 12, 13.) For example, communications between the lawyers for the parties or between Moving Party and unnecessary third parties are not privileged. Further, the privilege as to certain communications may have been waived for example if a third or nonessential party was included or there is an exception to the privilege such as fraud.

As explained in the Court's tentative ruling granting Plaintiff's motion to compel further responses to the RFPs, Naccasha and C&N's responses to the RFPs are evasive and not code compliant. The LLC has not waived the attorney-client privilege, but the privilege must be asserted properly with a privilege log that provides sufficient information to determine that the privilege applies, was not waived, and does not have exceptions.

Moving Party raises concern that it will violate the LLC's attorney-client privilege if it complies with section 2031.230 which requires a party who is unable to comply with a demand to set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item. While the transmission of specific public documents between attorney and client might reveal the transmitter's intended strategy and is therefore privileged (*Costco Wholesale Corp. v. Superior Ct*. supra, 47 Cal.4th at

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[1] For example, C&N RFP 3 requests, "All DOCUMENTS that RELATE TO the financial statements of PUREINFLUENCER, including without limitation, tax returns, general ledgers, profit and loss statements, balance sheets, cash flow statements, pro forma financial statements, income projections, all in their native QuickBooks files, for PUREINFLUENCER from 2019 to present."

734), Moving Party cites no authority nor does the Court find authority that the attorney's return of documents to the client is privileged or protected in any way.

Moving Party has not shown good cause for the requested protective order. Moving Party may not have the requested unprivileged documents in its possession, custody, or control, but is required to conduct a diligent search and serve code-compliant supplemental responses stating so.

Naccasha and C&N waived their attorney work product objections by serving the responses after the statutory deadline. Moving Party requests the Court grant relief from such waiver pursuant to section 2031.300, subd. (a) which provides that the court may grant relief on condition (1) the party has subsequently served a code-compliant response and (2) failed to serve a timely response due to mistake, inadvertence, or excusable neglect.

Moving Party provides the declaration of attorney Gayley Buckner who declares that the failure to timely respond to Plaintiff's discovery requests was entirely due to her mistake, inadvertence, and excusable neglect in not seeing the emailed discovery requests and not calendaring the response deadline. (Declaration of Gayley Buckner, ¶ 10.) Ms. Buckner further states that she realized the responses were overdue on October 17, 2025. (*Id.* at ¶ 4.) Moving Party first sought relief from waiver on February 20, 2026.[2]

Plaintiff argues Moving Party did not act promptly in seeking a protective order or relief from waiver. The Court finds that the motion for relief was reasonably prompt given ongoing meet and confer discussions. However, Moving Party has not established the second element for relief from waiver of the attorney work product doctrine, i.e., service of a code-compliant response. Moving Party admits that it always intended to serve supplemental responses but has not done so. The request for relief from waiver of the attorney work product objection is denied.

The motion for protective order is denied.

[2] Moving Party filed the motion for protective order on January 26, 2026, but did not include a request for relief from waiver. The amended motion filed February 20, 2026, added the Buckner Declaration and a request for relief from waiver.